

TAB 3



Board of Education Report

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File #: Rep-130-22/23, **Version:** 1

Approval of Facilities Contracts Actions

February 7, 2023

Procurement Services Division - Facilities Contracts

Action Proposed:

Ratify the Procurement Services Division (PSD) contract actions taken by Facilities Contracts under delegated authority as listed in Attachment “A” including: award of advertised construction contracts; award of job order contract amendments; approval of change orders; completion of contracts; award of architectural and engineering contract; award of goods and services contract; extra services / amendments for architectural and engineering contracts and approve the proposed contract listed in Attachment B including contract capacity increase for geotechnical engineering professional services contracts.

Background:

Facilities Contracts staff prepares monthly reports for contract actions necessary for the execution of projects approved by the Board and contained in the FSD Strategic Execution Plan (SEP), and for the maintenance and operation of District facilities in accordance with District policies and Board-delegated authority. As described in the November 12, 2013 Board Report #048-13/14 Informative, detailed information is provided on the Facilities Services website.

Expected Outcomes:

Approval of these items will allow services provided by these contracts to proceed in support of FSD projects, District policies and goals, and the Board-approved FSD-SEP.

Board Options and Consequences:

The Board can approve all actions presented or postpone selected actions pending receipt of additional information. Non-ratification of actions awarded under delegated authority in Attachment “A” will result in the immediate discontinuance of services. While non-ratification may be legally defensible, it will likely result in costly litigation over discontinued payments or if the District attempts to reclaim payments made to a vendor. District costs will likely increase as fewer contractors compete for future procurements.

Policy Implications:

This action does not change District policy and conforms to California Education Code section 17604 that permits the Board of Education to delegate authority for Facilities Contracts (Board Report #444-17/18), which the Board exercised on May 08, 2018.

Budget Impact:

The contract actions presented are within the budget authority previously approved by the Board. Unless indicated otherwise, all contract actions are Bond funded.

Student Impact:

The contract actions will help ensure that the students are provided with safe and healthy environments, and up to-date facilities that promote learning

Equity Impact:

Not applicable

Issues and Analysis:

There are no policy implications on these agreements

Attachments:

Attachment "A" - Ratification of Facilities Contract Actions Awarded Under Delegated Authority

Attachment "B" - Approval of Facilities Contract Actions Not Under Delegated Authority

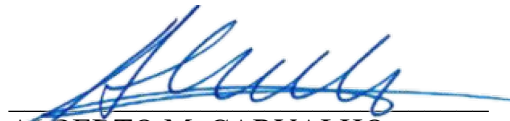
Informatives:

None

Submitted:

01/12/23

RESPECTFULLY SUBMITTED,



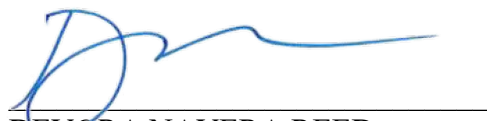
ALBERTO M. CARVALHO
Superintendent

APPROVED BY:



PEDRO SALCIDO
Deputy Superintendent,
Business Services & Operations

REVIEWED BY:



DEVORA NAVERA REED
General Counsel

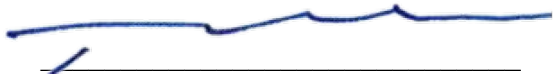
APPROVED:



SUNG YON LEE
Deputy Chief Business Officer
Business Services and Operations

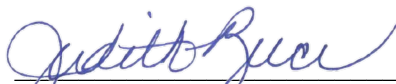
☒ Approved as to form.

REVIEWED BY:



TONY ATIENZA
Director, Budget Services and Financial Planning

APPROVED & PRESENTED BY:



JUDITH REECE
Chief Procurement Officer
Procurement Services Division

☒ Approved as to budget impact statement

REVIEWED BY:



MARK HOVATTER
Chief Facilities Executive

☒ Approved as to facilities impact

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

A. AWARD OF ADVERTISED CONSTRUCTION CONTRACTS

Item A

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Prime Axis General Builder, Inc. (SBE)	2310001 / 4400011031	<u>South Gate MS</u> Site Improvements Board Member: <u>Jackie Goldberg</u>	Bond Funds (100%)	\$1,547,000

Ratification of formally competed best value contract from five (5) bids received to provide site improvements to comply with the Americans with Disabilities Act (ADA) and installation of new play courts. Contract supports the implementation of the International Studies Learning Center Addition Project ([Board Report No. 577-16/17](#), adopted on June 13, 2017 provided project approval).

Improvements include:

- construction of new Futsal and Pickle Ball play courts area
- ADA path of travel scope in parking lot and path from Firestone Boulevard to new play courts
- minimal updates to existing boys, girls and all gender restrooms in Administration Building
- updates to fire alarm signal devices (smoke detectors)
- construction of new green lawn area

These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

Contract Term: 12/12/22 through Division of State Architect (DSA) certification and close-out.

Contract Value: \$1,547,000

Requester:

Greg Garcia, Director
Project Execution
Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

JOB ORDER CONTRACT AMENDMENTS

Item B

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Community Playgrounds, Inc. (SBE)	2130000 / 4400008525 (2130000.06)	Districtwide Job Order Contract Amendment	Bond Funds (90%) General Funds (10%)	\$1,000,000*

Ratification of Job Order Contract Amendment to increase contract capacity of a formally competed contract to provide playground safety tile matting contracting services Districtwide.

These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

Contract term including this amendment: 07/20/20 through 07/19/23
Zero (0) option years (OY) remaining

Initial Contract Value:	\$350,000
Amendment No. 1	\$1,000,000
Amendment No. 2	Terms Revised
Amendment No. 3	Terms Revised
	OY1
Amendment No. 4	\$1,500,000
Amendment No. 5	Terms Revised
	OY2
*Amendment No. 6:	\$1,000,000
<i>(Executed Date: 11/29/22)</i>	

Aggregate Contract Value: \$3,850,000

Requester:

India Griffin, Director
Maintenance & Operations
Facilities Services Division

* *Current Ratification*

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

JOB ORDER CONTRACT AMENDMENTS

Item C

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
MJ Construction Development, Inc. (SBE)	2230006 / 4400010336 (2230006.01)	Districtwide Job Order Contract Amendment	Bond Funds (100%)	\$500,000*

Ratification of Job Order Contract Amendment to increase contract capacity of a formally competed contract to provide general contracting services Districtwide.

These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

Contract term including this amendment: 03/10/22 through 03/09/23
Two (2) option years (OY) remaining

Initial Contract Value:	\$500,000
*Amendment No. 1:	\$500,000
(Executed Date: 11/17/22)	

Aggregate Contract Value: \$1,000,000

Requester:

Greg Garcia, Director
Project Execution
Facilities Services Division

* Current Ratification

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

JOB ORDER CONTRACT AMENDMENTS

Item D

<u>CONTRACTOR</u>	<u>IDENTIFICATION</u> <u>NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE</u> <u>OF</u> <u>FUNDS</u>	<u>AMOUNT</u>
Piana Construction & Painting, Inc. (SBE)	2230023 / 4400010640 (2230023.01)	Districtwide Job Order Contract Amendment	Restricted Maintenance Funds (100%)	\$2,000,000*

Ratification of Job Order Contract Amendment to increase contract capacity of a formally competed contract to provide painting contracting services Districtwide.

These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

Contract term including this amendment: 06/13/22 through 06/12/23
Two (2) option years (OY) remaining

Initial Contract Value:	\$1,000,000
*Amendment No. 1:	\$2,000,000
<i>(Executed Date: 11/17/22)</i>	

Aggregate Contract Value: \$3,000,000

Requester:

India Griffin, Director
Maintenance & Operations
Facilities Services Division

* *Current Ratification*

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

Item E

B. APPROVAL OF CHANGE ORDERS

**December 2022
= \$4,164,448**

		<u>QUANTITY</u>	<u>AMOUNT</u>
	i. New Construction contract change orders that do not individually exceed 10 percent for December 2022 (Average Transaction: \$43,587; Median Transaction: \$15,500)	14	\$610,215
	ii. New Construction contract credit change orders for December 2022:	0	<\$0>
	iii. Existing Facilities contract change orders that do not individually exceed 15 percent for December 2022 (Average Transaction: \$17,503; Median Transaction: \$7,475):	207	\$3,623,106
	iv. Existing Facilities contract credit change orders for December 2022:	8	<\$68,873>
	v. Existing Facilities contract change orders that individually exceed 15 percent (but do not exceed 25 percent) for December 2022, requiring 75 percent approval by the Board:	0	\$0
C.	COMPLETION OF CONTRACTS – December 2022	8	\$710,987
D.	AWARD OF INFORMAL CONTRACTS (Not Exceeding \$99,100)		
	A & B Letters for December (Average Transaction: \$51,015; Median Transaction: \$25,000)	30	\$1,530,448

ATTACHMENT A
RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

H. AWARD OF ARCHITECTURAL AND ENGINEERING CONTRACTS

Item F

<u>CONTRACTOR</u>	<u>IDENTIFICATION</u> <u>NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE</u> <u>OF</u> <u>FUNDS</u>	<u>AMOUNT</u>
Westberg + White Architecture, Inc.	2320007 / 4400010740	<u>Nightingale MS</u> Board Member: <u>Dr. Rocío Rivas</u>	Bond Funds (100%)	\$329,038

Ratification of design contract to provide architectural and engineering services procured via RFQ R-19012. Provide site investigation, construction document, construction administration and closeout for the barrier removal project ([Board Report No. 007-22/23](#), adopted August 30, 2022).

These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

Contract Term: 11/22/22 through closeout

Contract Value: \$329,038

Requester:

Aaron Bridgewater, Director
Asset Management
Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

N. AWARD OF GOODS AND SERVICES CONTRACTS

Item G

<u>CONTRACTOR</u>	<u>IDENTIFICATION</u> <u>NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE</u> <u>OF</u> <u>FUNDS</u>	<u>NOT-TO-</u> <u>EXCEED</u> <u>AMOUNT</u>
EV Connect, Inc.	2390008 / 4400010993	<u>Maywood Academy HS</u> Board Member: <u>Jackie Goldberg</u>	Energy Rebate Funds (100%)	\$22,275

Ratification of Network Cloud Subscription Software for nine (9) Electric Vehicle (“EV”) Charging Stations installed at Maywood Academy HS for the District sustainability initiative in support of the state’s effort to reduce carbon emissions. (Authorization to Enroll in Southern California Edison’s Charge Ready Program and Execute Agreements for the Installation, Operation, and Maintenance of Electric Vehicle Charging Infrastructure and Stations at Four School Sites [Board Report No. 350-17/18](#) approved April 10, 2018).

On April 10, 2018, the Board of Education approved LAUSD’s participation in the Southern California Edison’s (SCE) Charge Ready Program (Program) at four schools (Garfield HS, Maywood Academy HS, South East HS, South Gate HS) for a period of 10 years, including purchase of equipment & materials. Under the program, SCE provided the electrical infrastructure for the Electric Vehicle (EV) charging stations and nine EV charging stations were installed by LAUSD in 2018 at Maywood Academy HS. The software required to operate the charging stations at Maywood Academy HS is proprietary. The charging stations at the other three schools utilize a different software and a performance assessment is currently underway.

These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

Contract Term: 10/31/22 through 10/30/27 including four (4) renewal options

Contract Value: \$22,275

Requester:

Christos Chrysiliou, Director
Sustainability Initiatives Unit
Facilities Services Division

ATTACHMENT A
RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

N. AWARD OF GOODS AND SERVICES CONTRACTS

Item H

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>NOT-TO- EXCEED AMOUNT</u>
ResourcePros Unlimited	4400011104 (IFB 2000002787)	<u>Various Locations</u> Board Member: <u>Various</u>	Bond Funds (100%)	\$5,000,000

Ratification of formally competed capacity contract to provide three (3) and five (5) tons cooling / heating capacity air conditioning and heat pumps to various District locations to support the implementation of the Districtwide Program for Cooling Relief at School Cafeteria Kitchens ([Board Report No. 123-22/23](#), approved January 17, 2023).

Many school sites do not have air conditioning equipment in the cafeteria. During extreme weather conditions, industrial portable air conditioning equipment will provide much-needed relief.

The proposed purchase contract will facilitate the procurement of industrial-type portable air conditioning units for use during extreme weather conditions at schools throughout the District, as needed. Pillars 4 and 5 will be supported by this action.

Contract Term: 03/01/23 through 02/29/28, including two (2) one-year renewal options

Aggregate Five-Year Contract Value: \$5,000,000

Requester:

India Griffin, Director
Maintenance & Operations
Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

- O. **EXTRA SERVICES / AMENDMENTS FOR ARCHITECTURAL AND ENGINEERING CONTRACTS** **\$84,723**

Item I

CONTRACT NOS.	1620142/4400004780; 1820030/4400006256
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Extra services are for design work that is not covered under the original Agreement. November Extra Services are listed at the link provided.

These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

<https://drive.google.com/file/d/1LcK-Ej0kKOJZ5HZRM5ZhSj0CkpX0203/view?usp=sharing>

**ATTACHMENT B
APPROVAL OF CONTRACTS NOT UNDER DELEGATED AUTHORITY**

**A. APPROVAL OF PROFESSIONAL / TECHNICAL SERVICES CONTRACT \$15,000,000
CAPACITY INCREASE**

Item J

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>
AESCO (SBE)	2090014/4400008120	Ninyo & Moore Geotechnical & Environmental Sciences Consultants	2090020/4400008126
GEOCON West, Inc.	2090015/4400008121		
Geotechnical Professionals, Inc. (SBE)	2090016/4400008122	NV5 West, Inc.	2090021/4400008127
Gorian and Associates, Inc. (SBE)	2090017/4400008123	RMA Group	2090022/4400008128
Group Delta Consultants, Inc.	2090018/4400008124	TGR Geotechnical, Inc. (TGR) (SBE)	2090023/4400008129
Koury Engineering & Testing, Inc. (SBE)	2090019/4400008125	The Converse Professional Group, dba Converse Consultants	2090024/4400008130
		WSP USA Environment & Infrastructure, Inc. (Formerly Wood Environment & Infrastructure Solutions, Inc.)	2090025/4400008131

(RFQ-R-20005)

Authorization to increase capacity for 12 formally competed professional services contracts for geotechnical engineering services District-wide. The authority to increase or decrease individual amounts for these contracts will be limited to the aggregate amount of \$40,000,000. ([BOE#249-19/20](#) March 10, 2020, Approval of Professional Technical Contracts).

Contract Term: 04/01/20 through 03/31/25
Includes three (3) one-year renewal options

Original Value: \$25,000,000
***Additional Requested Value:** \$15,000,000

NOT-TO-EXCEED AGGREGATE AMOUNT
\$15,000,000* (90% Bond Funds /10% General Funds)

Aggregate five-year value for twelve contracts: \$40,000,000

Requester:
India Griffin, Director
Maintenance & Operations
Facilities Services Division

** Current Ratification*